Miami County Common Pleas Court
07/14/2023 12:14 PM
Shawn M. Peeples
Clerk of Courts

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	DEFENDANT, OHIO'S HOSPICE, INC.'S MOTION TO DEEM MATTERS ADMITTED FOR FAILURE TO RESPOND
	:	
OHIO'S HOSPICE, INC., ET AL.,	:	
	:	
Defendants.	:	

Now comes Defendant, Ohio's Hospice, Inc. ("Defendant"), by and through the undersigned counsel, and hereby moves this Court for an Order deeming the Requests for Admissions served upon Plaintiff, Danielle Baker, ("Plaintiff") admitted for purposes of this action in accordance with Civ.R. 36(A)(1). A memorandum in support of this motion is attached hereto and incorporated herein, and a proposed Order Granting Defendant's Motion to Deem Matters Admitted is being submitted contemporaneously herewith for the Court's consideration.

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Joshua R. Lounsbury*
David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
33 W. First Street, Suite 200
Dayton, OH 45402
Phone: 937-223-8177
Fax: 937-223-6705
Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

MEMORANDUM IN SUPPORT

On June 13, 2023, Defendant served upon Plaintiff, Defendant's First Set Interrogatories, Request for Production of Documents and/or Things, and Request for Admissions. Exhibit 1. A copy of the Notice of Service filed with the Court is attached hereto as Exhibit 2. A true and accurate copy of the e-mail sent to Plaintiff with the Request for Admissions is attached hereto as Exhibit 3.

Plaintiff was instructed in the documents to respond within twenty-eight days as required by Civ.R. 36. Plaintiff's response to Defendant's Request for Admissions was due by July 11, 2023. Plaintiff has not requested an extension of this deadline. On July 12, 2023, the undersigned sent a letter to Plaintiff's Counsel regarding the overdue responses and stating the Request for Admissions are deemed admitted pursuant to Civ.R. 36. Exhibit 4. Plaintiff's counsel responded with an email stating, "We are working on having the discovery requests completed as soon as possible. Unfortunately, Ms. Baker has been ill as of late, but it is my hope

that a formal extension will not be needed." Exhibit 5. Plaintiff's counsel did not request an extension, nor has he provided the responses or advised specifically when he would provide responses, all in contravention of Civ.R. 36.

As of today, July 14, 2023, Plaintiff has failed to answer or object to Defendant's Request for Admissions. By rule, Plaintiff has admitted the matters in Defendant's Request for Admissions. Absent Plaintiff's signed response within twenty-eight days after service, the matters in the Request for Admissions must be deemed admitted. Civ. R. 36(A); *see also Cleveland Trust Co. v. Willis*, 20 Ohio St.3d 66, 485 N.E.2d 1052 (1985) ("Failure to respond at all to the requests will result in the requests becoming admissions."). Pursuant to Civ. R. 36(B), matters admitted are "conclusively established" for this action.

Pursuant to Civ.R. 36, the matters contained within Defendant's Request for Admissions should be deemed admitted and conclusively established for the purpose of this action. Thus, Ohio's Hospice, Inc. respectfully requests that its Motion to Deem Matters Admitted be granted.

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Joshua R. Lounsbury*

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
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Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on July 14, 2023, a copy of the foregoing Defendant, Ohio's Hospice, Inc.'s Motion to Deem Matters Admitted for Failure to Respond was filed electronically. Notice of this filing will be sent to all parties by operation of the Court's ECF System and copies will be mailed via U.S. Mail to those parties to whom electronic notice has not been sent. Parties may access the filing through the Court's system.

/s/ Joshua R. Lounsbury
Joshua R. Lounsbury (0078175)

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IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	DEFENDANT, OHIO'S HOSPICE, INC.'S FIRST SET OF INTERROGATORIES
	:	
OHIO'S HOSPICE, INC., ET AL.,	:	DIRECTED TO PLAINTIFF
	:	
Defendants.	:	

Pursuant to Rule 33 of the Ohio Rules of Civil Procedure, Plaintiff, Danielle Baker, is required to answer the following interrogatories in writing, under oath, within twenty-eight (28) days following the service hereof:

INSTRUCTIONS

1. You are to furnish all information which is either in your possession or control or in the control of anyone else who is employed by you.

2. All answers must be made fully and completely.

3. You are under a continuing duty to timely supplement your responses whenever answering any question which is especially directed to the identity and address of all persons having any knowledge of any discoverable information, of all persons expected to be called as witnesses, both expert and lay witnesses, furnishing information upon the testimony to which that witness is expected to testify at the trial, and further correct any response which may now or later be incorrect.

EXHIBIT
1

INTERROGATORIES

1. Please identify the specific medical condition(s) for which you are seeking the right to participate in the Workers' Compensation Fund.

ANSWER:

2. Are you alleging you sustained the conditions alleged in your Complaint as an injury, occupational disease or flow through?

ANSWER:

3. If you are alleging an injury, identify the date of the injury and how you determined this date of injury.

ANSWER:

4. If you are alleging an occupational disease, identify the date of diagnosis, how you identified the date of diagnosis, and the date you first become disabled as a result of the alleged occupational disease.

ANSWER:

5. Describe in detail how you are alleging that you were injured and/or sustained an occupational disease while working for the Defendant, Ohio's Hospice, Inc.

ANSWER:

6. If you have been infected with COVID-19, for each infection identify:

a. The specific dates you had symptoms of the infection, the specific dates (if any) you missed work, and whether you were paid COVID leave by the Defendant for those dates.

ANSWER:

b. When, how and by whom you were diagnosed with COVID-19?

ANSWER:

c. If/when you had a positive test

ANSWER:

d. What medical treatment you had for said infection and how long it took you to recover.

ANSWER:

7. Please state when (date and time), how and to whom (full names and addresses) you reported the alleged injury and/or occupational disease.

ANSWER:

8. If you intend to call any lay witnesses at the trial of this matter, please:

a. State the name and address of each witness you intend to call at the trial of this case, and the subject matter upon which each witness is expected to testify; and

ANSWER:

b. Whether each lay witness has prepared a written statement. If so, please produce a copy of the statement.

ANSWER:

9. Identify whether you are seeking the allowance of the conditions alleged in your Complaint by way of substantial aggravation, direct causation or flow-through.

ANSWER:

10. Are you alleging that Plaintiff's transverse myelitis resulted from (1) COVID-19, (2) the COVID-19 vaccine, and/or (3) the combination of both COVID-19 and the COVID-19 vaccine.

ANSWER:

11. If the answer to the preceding interrogatory is in the affirmative, identify the specific theory(ies) of causation.

ANSWER:

12. If you have ever had any medical treatment to the area of your body allegedly injured as described in your Complaint, please provide the names and address of any medical provider or chiropractor that has treated you for this area of your body and the dates of such treatment.

ANSWER:

13. If you are still under the care of a medical provider for the injuries described in your Complaint, please state the name and address of each practitioner you are currently seeing, and the date of your last visit.

ANSWER:

14. Identify each person(s) with whom you have communicated, to potentially act as an expert witness or a witness offering opinion testimony that support your Complaint, be it by live or recorded testimony or via an affidavit.

ANSWER:

15. For each such person(s) identified in your previous response:

a. What is the person's field of expertise and what is the person's anticipated opinion(s) to be offered in this matter?

ANSWER:

b. Identify the specific medical reports, office notes, and/or documents prepared by your expert that support your Complaint.

ANSWER:

16. Please list the names and dosages of all medication you are currently taking, the physician who is prescribing each medication, the cost of each medication, and the names and addresses of all pharmacies used by you.

ANSWER:

17. If you are claiming any periods of temporary total disability as a result of the conditions alleged in your Complaint, please attach documentation from your treating physician and identify the specific dates you are alleging you have been temporarily and totally disabled.

ANSWER:

18. If you are alleging that you are permanently and totally disabled as a result of the conditions alleged in your Complaint, identify the date that you became permanently and totally disabled, who has rendered the opinion that you are permanently and totally disabled and when did they render this opinion?

ANSWER:

19. Please provide the names and addresses of any medical provider you have seen for medical treatment for any condition, illness, or ailment in the last fifteen (15) years, including, but not limited to, any hospital, clinic, laboratory, urgent care, physician, family physicians, chiropractor, physical therapist, nurse practitioner, psychologist, psychiatrist, or mental health professional.

ANSWER:

20. If the Plaintiff has ever filed any other Workers' Compensation claims, please provide:

a. The claim number and a description of the alleged injury on which the claim was based, the specific conditions allowed or denied, and whether the claim was settled.

ANSWER:

21. Please relate the Plaintiff's complete job history, including, for each employer before, during and after your alleged employment with the Defendant, the name and address of the employer and the inclusive dates of employment.

ANSWER:

22. Please state whether Plaintiff has ever applied for any type of Social Security benefits?

ANSWER:

23. If the answer to the preceding interrogatory is in the affirmative, please state the date you applied for said benefits, whether and when the application was granted, and the physical and/or psychiatric condition(s) upon which said application was based.

ANSWER:

24. Please state whether Plaintiff is, or will become, a Medicaid or Medicare beneficiary. If so, please state the date you began receiving said benefits or anticipate becoming eligible.

ANSWER:

25. Please identify each internet-based social networking site that you have used since January 1, 2020, i.e. including but not limited to Facebook, Twitter, Instagram, Tik Tok, Rumble, Snapchat, GiveSendGo, YouTube, etc., to post or comment upon the medical conditions alleged in your Complaint, COVID-19 illness and/or COVID-19 vaccination.

ANSWER:

26. Please identify each text messaging and/or instant messaging service (including, but not limited to Facebook Messenger, Skype, etc.) upon which you received or transmitted any information which is related in any way to your alleged injury and/or alleged occupational disease.

ANSWER:

27. Please list all steps which have been taken to identify and preserve any electronically-stored information (i.e. such as documents stored on any type of computer, text/instant message, magnetic storage, remote/cloud storage, including all social media and other information stored on the internet or accessible from websites, etc.) in connection with the injury or occupational disease alleged in your Complaint.

ANSWER:

28. Please identify all sources and amounts of income or income streams (i.e. such as wages from employment, social security benefits of any kind, GoFundMe or GiveSendGo donations or the like, any online or in person campaigns, fundraisers or crowdfunding websites, from podcasting, speaking engagements, paid subscriptions (ie Substack, etc.) and/or product endorsements (ie Root, etc.), and indicate the number and amount of all monetary or other donations (including products, services, medical treatment or prescriptions or the like) given to you, and whether you have declared said income on your taxes.)

ANSWER:

29. Please provide a list of all interviews, appearances, speaking engagements, conferences, events and expos or the like that you have attended, state whether you attended in person and if so the location, and whether you were compensated for your appearance and/or received lodging, expenses, etc. and if so the amount of such compensation.

ANSWER:

30. Please identify your publicist by full name and address, and whether/how much you pay for his services.

ANSWER:

31. Have you filed any other claim or lawsuit against any other person, corporation, fund or public or private entity as a result of the injury or occupational disease alleged in your Complaint? If so, identify all individuals, corporations, and/or entities against whom said claims or lawsuits have been brought, the Court and case number, the nature of the claim and the body parts at issue and the status/outcome of the lawsuit (e.g., pending, jury verdict, settled, etc.).

ANSWER:

32. If your response to any of Defendant, Ohio's Hospice, Inc.'s First Set of Requests for Admissions Directed to Plaintiff is anything other than an unqualified admission, set forth the factual basis for your response.

ANSWER:

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Michelle D. Bach*

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
33 W. First Street, Suite 200
Dayton, OH 45402
Phone: 937-223-8177
Fax: 937-223-6705
Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on June 13, 2023, a copy of the foregoing Defendant, Ohio's Hospice, Inc's First Set of Interrogatories Directed to Plaintiff was served on the following by electronic mail and/or regular U.S. mail, postage prepaid:

James E. Gardner, Esq.
1653 Merriman Road, Suite 108
Akron, OH 44313
Email: gardnerlaw@sbcglobal.net
Attorney for Plaintiff,
Danielle Baker

Barbara L. Barber, Esq.
Principal Assistant Attorney General
Workers' Compensation Section
3874 Paxton Avenue, #9205
Cincinnati, OH 45209-9205
Email: Barbara.Barber@OhioAGO.gov
Attorney for Defendant, Administrator,
Bureau of Workers' Compensation

/s/ Michelle D. Bach
Michelle D. Bach (0065313)

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IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	DEFENDANT, OHIO'S HOSPICE, INC.'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS AND/OR THINGS DIRECTED TO PLAINTIFF
OHIO'S HOSPICE, INC., ET AL.,	:	
	:	
Defendants.	:	

Now comes Defendant, Ohio's Hospice, Inc., through its counsel, and, pursuant to Rule 34, Ohio Rules of Civil Procedure, hereby requests that Plaintiff produce the following documents and/or things for inspection and/or copying at the offices of Coolidge Wall Co., L.P.A., Suite 200, 33 West First Street, Dayton, Ohio 45402, within twenty-eight (28) days of service hereof.

DOCUMENTS AND/OR THINGS

1. All writings, documentary evidence and/or exhibits, photographs, movies, videotapes, voice recordings, reports, records, publications, scientific articles or publications, surveys, charts, graphs, x-rays or other medical test results and tangible objects which the Plaintiff intends, contemplates or expects to enter into evidence, to be used to refresh a witness's recollection, or to be identified at the trial of this matter.

2. All statements made by the Plaintiff regarding the incident alleged in the Complaint, whether oral, written or recorded, or videotaped.

3. All statements made by any witnesses regarding the incident alleged in the Complaint, whether oral, written, recorded, or videotaped.

4. All writings, documents, photographs, movies, videotapes, voice recordings, reports, records, publications, scientific studies or articles, surveys, charts, graphs, x-rays or other medical test results and tangible objects which may be utilized or relied upon by any of Plaintiff's expert witnesses at the trial of this matter.

5. Produce all documents relating to any communications between you and any expert identified in response to the First Set of Interrogatories.

6. Produce all documents relating to any claim you are raising in the lawsuit.

7. Produce all documents you have provided to any expert identified in response to the First Set of Interrogatories.

8. All reports prepared by or for any expert witnesses or consultants retained by or on behalf of Plaintiff with regard to any aspect of the injury alleged in the complaint.

9. The curriculum vitae of each expert witness you expect to call at the trial of this lawsuit or used in the preparation of this lawsuit.

10. All medical records, reports, and hospital records which relate to any treatment received by the Plaintiff for any complaint or condition.

11. All documents which relate to, or which contain written reports, statements, opinions, or letters made by each physician or practitioner of any healing art, who has seen or treated the Plaintiff for any complaint or condition.

12. All of Plaintiff's State and Federal Income Tax returns and all W-2 Forms, 1099 Forms, and W-9 Forms for the years 2017-2022.

13. Please produce copies of any and all documents pertaining to any prior, previous and/or other workers' compensation claims, and/or sign and return the attached Authorization.

14. Please sign and return the attached Authorizations for Release of Medical Information. Please complete the attached Provider List. Please include all medical providers who have treated you and all medical facilities visited for the past fifteen (15) years.

15. Please produce an electronic, native copy of the information available on each page of your Facebook, Twitter, Instagram, TikTok, Rumble, Snapchat, GiveSendGo account(s) from June 4, 2021 to the present.

16. Produce any and all documentation and records pertaining to your income as requested in Interrogatory No. 28.

17. Please provide any and all correspondence received from any Hospice employee concerning the COVID-19 vaccine and/or any Hospice policy regarding the COVID-19-vaccine.

18. Please provide any and all reports or records for all positive COVID-19 tests.

19. Please provide any and all reports or records stating Plaintiff is permanently and totally disabled as a result of the medical conditions alleged in the Complaint.

20. Please provide any and all COVID-19 related policies in your possession.

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Michelle D. Bach*

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
33 W. First Street, Suite 200
Dayton, OH 45402
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Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on June 13, 2023, a copy of the foregoing Defendant, Ohio's Hospice, Inc's First Request for Production of Documents and/or Things Directed to Plaintiff was served on the following by electronic mail and/or regular U.S. mail, postage prepaid:

James E. Gardner, Esq.
1653 Merriman Road, Suite 108
Akron, OH 44313
Email: gardnerlaw@sbcglobal.net
Attorney for Plaintiff,
Danielle Baker

Barbara L. Barber, Esq.
Principal Assistant Attorney General
Workers' Compensation Section
3874 Paxton Avenue, #9205
Cincinnati, OH 45209-9205
Email: Barbara.Barber@OhioAGO.gov
Attorney for Defendant, Administrator,
Bureau of Workers' Compensation

/s/ Michelle D. Bach
Michelle D. Bach (0065313)

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Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Birthdate 07/05/1979

Patient's Address 808 Caribou Court
Piqua, OH 45356

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

I understand I have the right to revoke this authorization at any time, but my revocation must be in writing and submitted Coolidge Wall Co., L.P.A. My decision to revoke this authorization will be effective at the time it is received by Coolidge Wall Co., L.P.A. However, I understand any revocation will not apply to information that has already been released pursuant to this authorization.

I further understand that information disclosed pursuant to this authorization may be redisclosed by Coolidge Wall Co., L.P.A., filed with the Bureau of Workers' Compensation and/or the Industrial Commission of Ohio, and may no longer be protected by any applicable privacy requirements.

I have read and fully understand the foregoing. A photocopy of this authorization is to be accepted the same as the original. This consent expires one year from the date below.

Date

Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe relationship to Patient.

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Birthdate 07/05/1979

Patient's Address 808 Caribou Court
Piqua, OH 45356

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):

Advanced Neurosurgery, Inc., Jamal Taha, M.D.

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

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Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe relationship to Patient.

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Patient's Address 808 Caribou Court
Piqua, OH 45356

Birthdate 07/05/1979

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):
All Premier Health facilities, all Premier Physician offices, including but not limited to: Primary Care Internists, Premier Orthopedics, Orthopedic Spine Surgery, Upper Valley Family Medicine, Miami Valley Hospital, Good Samaritan Hospital, Upper Valley Medical Center, Upper Miami Valley Urology Clinic, Clinical Neuroscience Institute, Wright State Physicians

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

I understand I have the right to revoke this authorization at any time, but my revocation must be in writing and submitted Coolidge Wall Co., L.P.A. My decision to revoke this authorization will be effective at the time it is received by Coolidge Wall Co., L.P.A. However, I understand any revocation will not apply to information that has already been released pursuant to this authorization.

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Date

Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Patient's Address 808 Caribou Court
Piqua, OH 45356

Birthdate 07/05/1979

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):

Horizon Home Health

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

I understand I have the right to revoke this authorization at any time, but my revocation must be in writing and submitted Coolidge Wall Co., L.P.A. My decision to revoke this authorization will be effective at the time it is received by Coolidge Wall Co., L.P.A. However, I understand any revocation will not apply to information that has already been released pursuant to this authorization.

I further understand that information disclosed pursuant to this authorization may be redisclosed by Coolidge Wall Co., L.P.A., filed with the Bureau of Workers' Compensation and/or the Industrial Commission of Ohio, and may no longer be protected by any applicable privacy requirements.

I have read and fully understand the foregoing. A photocopy of this authorization is to be accepted the same as the original. This consent expires one year from the date below.

Date

Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe relationship to Patient.

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Patient's Address 808 Caribou Court
Piqua, OH 45356

Birthdate 07/05/1979

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):

Dayton Center for Neurological Disorders

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

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I have read and fully understand the foregoing. A photocopy of this authorization is to be accepted the same as the original. This consent expires one year from the date below.

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If signed by guardian or personal representative, please describe relationship to Patient.

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Patient's Address 808 Caribou Court
Piqua, OH 45356

Birthdate 07/05/1979

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):

Elizabeth A. Laffay, D.O., Elite Wellness Group

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

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I further understand that information disclosed pursuant to this authorization may be redisclosed by Coolidge Wall Co., L.P.A., filed with the Bureau of Workers' Compensation and/or the Industrial Commission of Ohio, and may no longer be protected by any applicable privacy requirements.

I have read and fully understand the foregoing. A photocopy of this authorization is to be accepted the same as the original. This consent expires one year from the date below.

Date

Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe relationship to Patient.

Authorization for Release of Medical Information

Patient's Name Danielle L. Baker (FKA Connell)

Patient's Address 808 Caribou Court
Piqua, OH 45356

Birthdate 07/05/1979

Treatment Dates ALL

Social Security Number (Last 4 digits) XXX-XX-1162

I hereby authorize said medical provider(s):
All Kettering Health facilities, all Kettering Health Medical Group physician offices, including but not limited to:
Kettering Medical Centers, Kettering Brain and Spine, Pain Alternatives, Ann Habenicht, D.O.

to release any and all billing and medical information, treatment notes and records, company physical, without limitation, relating to my care; including treatment for psychiatric illness, alcohol and/or drug abuse; HIV test results or diagnoses of AIDS/ARC and/or other communicable diseases; as well as inpatient, outpatient or emergency room treatment records, and copies of the actual films/images of diagnostic studies, on the above listed date(s).

The above information is to be released to: Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402
Phone: (937) 223-8177

I understand this information is being released to the above-referenced law firm in consideration of pending issues in my Workers' Compensation claim, and therefore, it is exempt from the privacy requirements of the Health Information Portability and Accountability Act (HIPAA).

I authorize Coolidge Wall Co., L.P.A. to obtain records from all medical providers listed above. I further expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers discovered as a result of medical records obtained via this release. I also expressly authorize Coolidge Wall Co., L.P.A. to obtain records from any/all additional medical providers of mine named in a provider list or discovered by Coolidge Wall Co., L.P.A. as a result of oral testimony or written discovery relative to my Workers' Compensation claim(s) or other litigation.

I AM SPECIFICALLY AUTHORIZING COOLIDGE WALL CO., L.P.A. TO ADD THE NAMES OF ANY SUCH IDENTIFIED/DISCOVERED MEDICAL PROVIDERS TO THIS RELEASE AND TO SUBMIT THIS RELEASE AS AMENDED TO THOSE MEDICAL PROVIDERS WITHOUT FURTHER APPROVAL BY ME.

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I further understand that information disclosed pursuant to this authorization may be redisclosed by Coolidge Wall Co., L.P.A., filed with the Bureau of Workers' Compensation and/or the Industrial Commission of Ohio, and may no longer be protected by any applicable privacy requirements.

I have read and fully understand the foregoing. A photocopy of this authorization is to be accepted the same as the original. This consent expires one year from the date below.

Date

Signature of Patient (or guardian or personal representative)

If signed by guardian or personal representative, please describe relationship to Patient.

PROVIDER LIST

Claimant: Danielle L. Baker (FKA Connell)
Employer: Ohio's Hospice, Inc.

HOSPITAL/DOCTOR	ADDRESS	TREATMENT DATES	TYPE OF TREATMENT/ TYPE OF PHYSICIAN /BODY PART TREATED
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
10.			
11.			
12.			

AUTHORIZATION

TO: Ohio Bureau of Workers' Compensation

The undersigned **Danielle L. Baker (FKA Connell)** hereby authorizes the Bureau of Workers' Compensation to release to COOLIDGE WALL CO., L.P.A. Attorneys, or to their designee, the State files containing any and all documents related to all claims related to **Danielle L. Baker (FKA Connell)**, SSN XXX-XX-1162, DOB 07/05/1979.

A photocopy of the within authorization may be accepted as the original.

IN WITNESS WHEREOF, the undersigned has hereunto set his hand this ____ day of _____, _____.

_____

Danielle L. Baker (FKN Connell)

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	DEFENDANT, OHIO'S HOSPICE, INC.'S FIRST REQUEST FOR ADMISSIONS
	:	
OHIO'S HOSPICE, INC., ET AL.,	:	DIRECTED TO PLAINTIFF
	:	
Defendants.	:	

Pursuant to Rules 26 and 36 of the Ohio Rules of Civil Procedure, Plaintiff, Danielle Baker, is required to answer the following Requests for Admissions ("Request"). Written responses are to be served on the undersigned counsel within twenty-eight (28) days hereof. Supplementation of responses shall be made in compliance with Ohio Civ. R. 26(E).

DEFINITIONS

1. "Person" means an individual, corporation, proprietorship, partnership, professional corporation, association, group, governmental agency or agent, trust, and any other entity.

2. "Identify," "identification," "identity," "description," or "describe" has the following meanings:

    i. when used in reference to a natural person it means to state the person's full name, title and job description (if applicable) and the person's residence address and business address or, if unknown, the last known business or residence address;

    ii. when used in reference to a partnership it means to state the full partnership name and the address of its principal office;

iii. when used in reference to a corporation it means to state its full name, its state of incorporation, the address of its principal office and each of its present business addresses;

iv. when used in reference to an unincorporated association or any other business entity it means to state the full name of the entity and the address of its principal office;

v. when used in reference to a Document it means to state the type of Document (e.g., letter, memorandum, telegram, chart, etc.) or some other means of identifying it, its author and originator, its date or dates, all addresses and recipients, when and how You first became aware of it, and its present location or custodian. If any such Document was, but is no longer in Your possession or subject to Your control, state what disposition was made of it; and

vi. when used in reference to an oral Communication it means to state the speaker, the person spoken to, the date, the place of Communication and the substance of such oral Communication with particularity.

3. "And" and "or" as used herein are both conjunctive and disjunctive when used in the course of an enumeration of items as to which Document or information is required: The words "or" and "and" are to be construed as requesting Documents and information as to each item in the enumeration, the same as if the entire Request had been addressed solely to that item.

4. "Relating to" or "relating to" or "relate to" means constituting, evidencing, directly or indirectly mentioning, describing, referring to, pertaining to, connected with or referring upon the stated subject matter.

5. "You" and "Your" shall refer to Plaintiff, as well as any Person and/or representative authorized to act on Plaintiff's behalf or under his control, including but not limited to, attorneys, accountants, consultants, advisors, and/or financial professionals.

INSTRUCTIONS

1. In responding to this discovery, You are required not only to furnish such information as You know of on Your own personal knowledge, but also information which is in the possession of Your attorneys, investigators, or any other Person acting on Your behalf or their behalf.

2. When, after a reasonable and thorough investigation using due diligence, You are unable to answer these Requests, or any part thereof, because of lack of information available to You, specify in full and complete detail the reason the information is not available to You and what has been done to locate such information. In addition, specify what knowledge You do have concerning the unanswered portion of the request and set forth the facts upon which such knowledge is based.

3. When these Requests do not specifically request a specific fact, but where such fact or facts are necessary to make the answer to the Request comprehensible, complete, or not misleading, You are requested to include such fact or facts as part of the answer and the Requests shall be deemed specifically to request the fact or facts.

4. If You claim any form of privilege as a ground for not answering any Request, in whole or in part, set forth in complete detail, each fact, transaction, occurrence, or event upon which You base Your claim of privilege, including sufficient detail to permit the court to adjudicate the validity of the claim. **Further, in accordance with Ohio Rule of Civil Procedure 26(B)(8), if You claim any form of privilege as a ground for not answering any Request, in whole or in part, Your assertion shall be made expressly, in the form of a privilege log, and shall be supported by a description of the nature of the Documents, Communications, or things not produced that is sufficient to enable Plaintiff to contest the claim.**

5. These Requests shall be deemed continuing in order to require supplemental answers in accordance with Rule 26 of the Ohio Rules of Civil Procedure if You obtain further information between the time of answering the Request and the time of trial.

6. If any Document to be identified was, but is no longer in Your possession or subject to Your control, or is no longer in existence, state whether it:

    i. is missing;

    ii. has been destroyed;

    iii. has been transferred, voluntarily or involuntarily, to others, and state the identity of those Person(s) to whom it has been transferred;

    iv. has been otherwise disposed of, and in each such instance, explain the circumstances surrounding such disposition, state the date or approximate date thereof, and the identity of the Person(s) with knowledge of such circumstances; or

    v. identify Documents that are missing, lost, destroyed, transferred or otherwise disposed of, by date, subject matter, addressee and the number of pages.

7. Whenever a singular form of any word is used in these Requests, it shall include the plural, and whenever the plural form of any word is used, it shall include the singular.

8. Definitions or explanations of words or phrases as given in the instruction section herein shall be deemed to apply to the use of such words and phrases within the instruction section, as well as their use in this discovery.

REQUESTS FOR ADMISSIONS

1. Admit that the first dose of the COVID-19 vaccine was administered to Plaintiff on June 4, 2021.
RESPONSE:

2. Admit that the second dose of the COVID-19 vaccine was administered to Plaintiff on June 26, 2021.
RESPONSE:

3. Admit that Exhibit A attached hereto is a true and accurate copy of Plaintiff's CDC COVID-19 Vaccination Record Card.
RESPONSE:

4. Admit that Defendant, Ohio's Hospice, Inc., did not require Plaintiff to obtain her COVID-19 vaccine from a specific provider or from a specific facility.
RESPONSE:

5. Admit that both COVID-19 vaccines were administered to Plaintiff at The Little Clinic (TLC) in Piqua, Ohio.
RESPONSE:

6. Admit that The Little Clinic (TLC) is not in close proximity to Plaintiff's place of employment.
RESPONSE:

7. Admit that Defendant, Ohio's Hospice, Inc., had no control over The Little Clinic (TLC) where the vaccines were administered to Plaintiff.
RESPONSE:

8. Admit that Defendant, Ohio's Hospice, Inc., received no benefit from Plaintiff's presence at The Little Clinic (TLC) where the vaccines were administered.
RESPONSE:

9. Admit that Plaintiff was not on duty for Defendant, Ohio's Hospice, Inc. at the time either of the COVID-19 vaccines were administered.
RESPONSE:

10. Admit that the only medical condition Plaintiff requested to be allowed in her Workers' Compensation Claim (No. 22-155661) at the September 28, 2022 District Hearing was "transverse myelitis."
RESPONSE:

11. Admit that the only medical condition Plaintiff requested to be allowed in her Workers' Compensation Claim (No. 22-155661) at the January 20, 2023 Staff Hearing was "transverse myelitis."
RESPONSE:

12. Admit that Plaintiff did not request that COVID-19 be allowed in her Workers' Compensation Claim (No. 22-155661) at the September 28, 2022 District Hearing.
RESPONSE:

13. Admit that Plaintiff did not request that COVID-19 be allowed in her Workers' Compensation Claim (No. 22-15561) at the January 20, 2023 Staff Hearing.
RESPONSE:

14. Admit that Defendant, Ohio's Hospice, Inc., mandated the vaccine on July 29, 2021.
RESPONSE:

Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: /s/ Michelle D. Bach

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
33 W. First Street, Suite 200
Dayton, OH 45402
Phone: 937-223-8177
Fax: 937-223-6705
Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com
ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

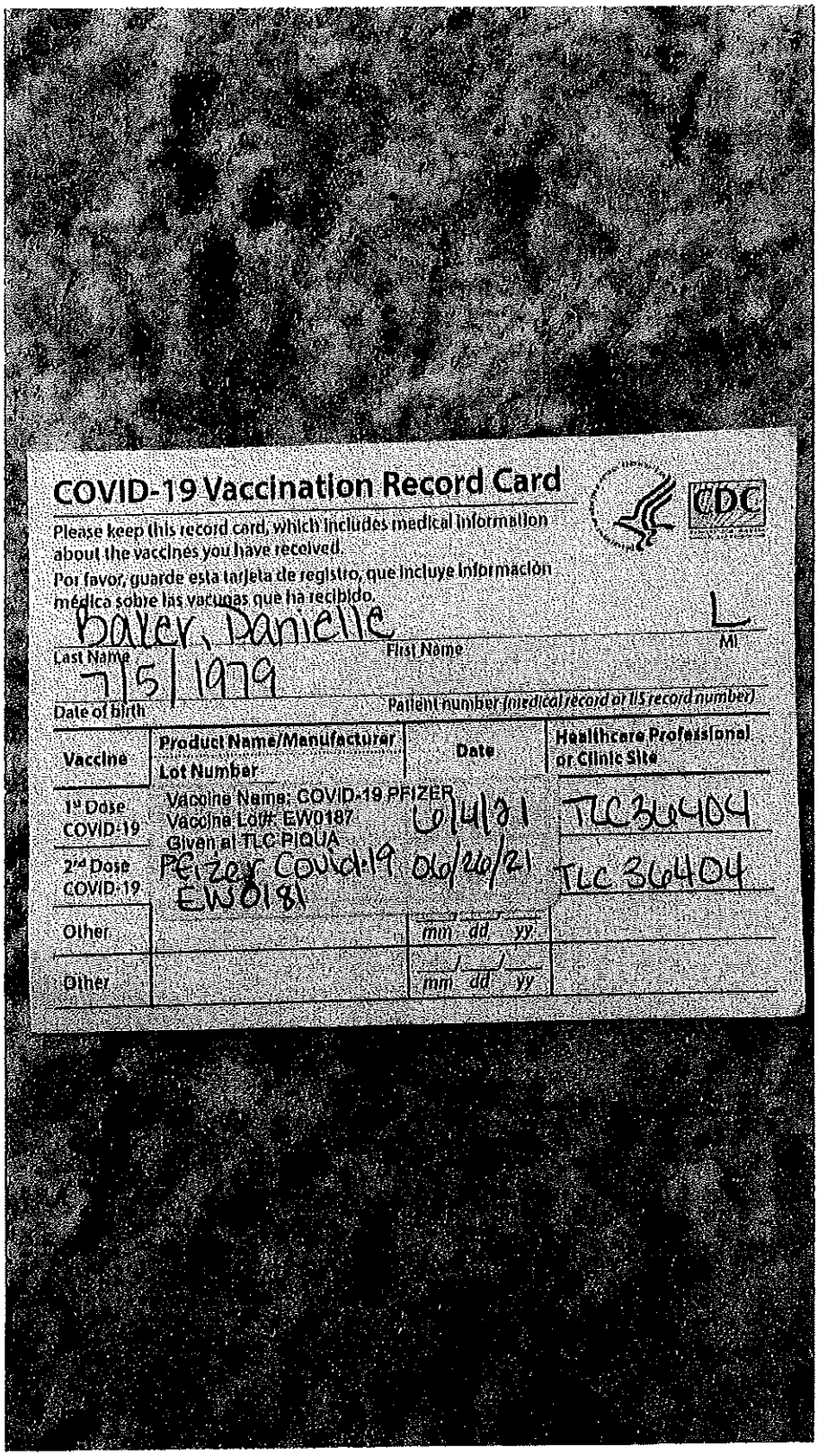
I hereby certify that on June 13, 2023, a copy of the foregoing Defendant, Ohio's Hospice, Inc's First Request for Admissions Directed to Plaintiff was served on the following by electronic mail and/or regular U.S. mail, postage prepaid:

James E. Gardner, Esq.
1653 Merriman Road, Suite 108
Akron, OH 44313
Email: gardnerlaw@sbcglobal.net
Attorney for Plaintiff,
Danielle Baker

Barbara L. Barber, Esq.
Principal Assistant Attorney General
Workers' Compensation Section
3874 Paxton Avenue, #9205
Cincinnati, OH 45209-9205
Email: Barbara.Barber@OhioAGO.gov
Attorney for Defendant, Administrator,
Bureau of Workers' Compensation

/s/ Michelle D. Bach
Michelle D. Bach (0065313)

w:\wdox\client\012064\00957\01380349.docx



COVID-19 Vaccination Record Card

CDC

Please keep this record card, which includes medical information about the vaccines you have received.
Por favor, guarde esta tarjeta de registro, que incluye información médica sobre las vacunas que ha recibido.

Baker, Danielle — L
Last Name — First Name — MI

7/5/1979
Date of birth — Patient number (medical record or IIS record number)

Vaccine	Product Name/Manufacturer Lot Number	Date	Healthcare Professional or Clinic Site
1st Dose COVID-19	Vaccine Name: COVID-19 PFIZER Vaccine Lot#: EW0187 Given at TLC PIQUA	06/20/21	TLC 36404
2nd Dose COVID-19	Pfizer Covid-19 EW0181	06/20/21	TLC 36404
Other		mm dd yy	
Other		mm dd yy	

EXHIBIT
A

Miami County Common Pleas Court
06/14/2023 01:22 PM
Shawn M. Peeples
Clerk of Courts

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

DANIELLE BAKER,	:	CASE NO. 23 CV 117
	:	
Plaintiff	:	JUDGE JEANNINE N. PRATT
	:	
vs.	:	NOTICE OF SERVICE OF DEFENDANT, OHIO'S HOSPICE, INC.'S FIRST SET OF INTERROGATORIES, FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS AND/OR THINGS AND FIRST REQUESTS FOR ADMISSIONS DIRECTED TO PLAINTIFF
OHIO'S HOSPICE, INC., ET AL.,	:	
	:	
Defendants.	:	
	:	
	:	
	:	

Pursuant to Rule 5(d) of the Ohio Rules of Civil Procedure, notice is hereby given that Defendant, Ohio's Hospice, Inc., has served its First Set of Interrogatories, First Requests for Production of Documents and/or Things and First Requests for Admissions Directed to Plaintiff, through her attorney, James E. Gardner, by electronic mail and regular U.S. mail on the 13th day of June, 2023.



Respectfully submitted,

COOLIDGE WALL CO., L.P.A.

By: */s/ Michelle D. Bach*

David C. Korte (0019382)
Michelle D. Bach (0065313)
Joshua R. Lounsbury (0078175)
33 W. First Street, Suite 200
Dayton, OH 45402
Phone: 937-223-8177
Fax: 937-223-6705
Email: korte@coollaw.com
bach@coollaw.com
lounsbury@coollaw.com

ATTORNEYS FOR DEFENDANT,
OHIO'S HOSPICE, INC.

CERTIFICATE OF SERVICE

I hereby certify that on June 14, 2023, a copy of the foregoing Notice of Service of Defendant, Ohio's Hospice, Inc.'s First Set of Interrogatories, First Set of Requests for Production of Documents and/or Things and First Requests for Admissions Directed to Plaintiff was filed electronically. Notice of this filing will be sent to all parties by operation of the Court's ECF System and copies will be mailed via U.S. Mail to those parties to whom electronic notice has not been sent. Parties may access the filing through the Court's system.

/s/ Michelle D. Bach
Michelle D. Bach (0065313)

w:\wdox\client\012064\00957\01381358.docx

Julie A. Gunter

From:	Julie A. Gunter
Sent:	Tuesday, June 13, 2023 4:58 PM
To:	'gardnerlaw@sbcglobal.net'
Cc:	'Barbara Barber'; Michelle D. Bach; David C. Korte; Joshua R. Lounsbury
Subject:	Baker vs. Ohio's Hospice, Inc., et al.
Attachments:	Defendant, Ohio's Hospice, Inc.'s First Set of Interrogatories Directed to Plaintiff (01380330xA06A8).docx; Defendant, Ohio's Hospice, Inc.'s First Request for Production of Documents and-or Things Directed to Plaintiff (01375596xA06A8).docx; Attachments to Ohio's Hospice, Inc.'s First Request for Production of Documents and-or Things (01381177xA06A8).pdf; Defendant, Ohio's Hospice, Inc.'s First Requests for Admission Directed to Plaintiff (01380349xA06A8).docx; Exhibit A to Ohio's Hospice, Inc.'s First Request for Admissions (01381176xA06A8).pdf

Mr. Gardner,

Attached you will find Ohio's Hospice, Inc.'s First Set of Interrogatories, First Request for Production of Documents and/or Things, and First Requests for Admissions Directed to Plaintiff.

Thank you,
Julie

Julie A. Gunter
Paralegal
Coolidge Wall Co., L.P.A.
33 West First Street, Suite 200
Dayton, Ohio 45402-1289
gunter@coollaw.com

Tel: 937.223.8177
Fax: 937.223.6705
DID: 937.449.5551

http://www.coollaw.com

EXHIBIT
3

Jonas J. Gruenberg
Merle F. Wilberding
J. Stephen Herbert
R. Scott Blackburn
Sam Warwar
Terence L. Fague
Richard A. Talda
David C. Korte
Stephen M. McHugh
Douglas M. Ventura
Kristin A. Finch
David P. Pierce
Shannon L. Costello
Christopher R. Conard
Marc L. Fleischauer
Michelle D. Bach
Gregory M. Ewers
Daniel J. Gentry
Chad D. Hansen
R. Michael Osborn
Patricia J. Friesinger
Joshua R. Lounsbury
Michael G. Leesman
W. Chip Herin III
Jeffrey A. Winwood
Lu Ann Stanley
Tino M. Monaldo
Edie E. Crump
Erica L. Glass
Patrick Martin
Benjamin A. Mazer
Robert D. Ballinger
Zachary B. White
Ashley E. Warwar
Elliott V. Haller
Kara T. Ruffolo
Sarah J. Sparks

J. Bradford Coolidge
1886-1965

Hugh E. Wall, Jr.
1912-2001

Ronald S. Pretekin
1942-2011

COOLIDGE WALL

A Legal Professional Association

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33 West First Street
Dayton, Ohio 45402-1289
937-223-8177
Fax: 937-223-6705
www.coollaw.com

Direct Dial Number
937-449-5780

E-mail Address:
lounsbury@coollaw.com

July 12, 2023

VIA EMAIL

James E. Gardner, Esq.
1653 Merriman Road, Suite 108
Akron, OH 44313

Re: Danielle L. Baker vs. Ohio's Hospice Inc., et al.
Miami County Court of Common Pleas, Case No. 23-117

Dear Mr. Gardner:

On June 13, 2023, my office served Defendant, Ohio's Hospice, Inc.'s First Request for Admissions Directed to Plaintiff. Service was completed to you on June 13 by email. Pursuant to Civil Rule 36, all of the Request for Admissions are admitted because you did not provide written answers and/or objections to the Request for Admission within the 28-days allowed by the Rule.

In addition to the First Request for Admissions, my office served Ohio's Hospice Inc.'s First Set of Interrogatories and Request for Production of Documents Directed to Plaintiff on June 13, 2023. The deadline to respond to those requests was July 11. To date, we have not received Ms. Baker's discovery responses. Please advise me regarding the status of the discovery responses and when I can expect to receive them. Thank you.

Very truly yours,

Joshua R. Lounsbury

Joshua R. Lounsbury, Esq.

Cc: Michelle D. Bach, Esq.
Julie Gunter

EXHIBIT
4

Julie A. Gunter

From: James Gardner <gardnerlaw@sbcglobal.net>
Sent: Wednesday, July 12, 2023 3:14 PM
To: Joshua R. Lounsbury
Subject: Re: Baker vs. Ohio's Hospice, Inc., et al.
Attachments: HospiceBaker Letter to Attorney Gardner re admissions and status of claimant's discovery responses.pdf

Mr. Lounsbury-

We are working on having the discovery requests completed as soon as possible.

Unfortunately, Ms. Baker has been ill as of late, but it is my hope that a formal extension will not be needed.

Thank you,

Jim Gardner

This email and any documents attached to this email contain legally privileged and confidential information. This information is intended only for the use of the individuals/entities to whom it was meant to be addressed. Any dissemination, distribution or copy of this information is strictly prohibited. If you have received this e-mail in error, please immediately notify the sender listed above and delete this email and any attachments. Thank you.

On Wednesday, July 12, 2023 at 01:14:07 PM EDT, Joshua R. Lounsbury <lounsbury@coollaw.com> wrote:

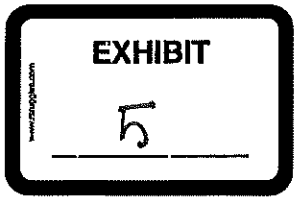
Mr. Gardner,

I am following up on my client's discovery requests, which were served June 13, 2023. Please see attached correspondence regarding same.

Thank you,

Josh Lounsbury

From: Julie A. Gunter
Sent: Tuesday, June 13, 2023 1:58 PM
To: 'gardnerlaw@sbcglobal.net' <gardnerlaw@sbcglobal.net>
Cc: 'Barbara Barber' <Barbara.Barber@OhioAGO.gov>; Michelle D. Bach <Bach@coollaw.com>; David C. Korte <Korte@coollaw.com>; Joshua R. Lounsbury <Lounsbury@coollaw.com>
Subject: Baker vs. Ohio's Hospice, Inc., et al.



Mr. Gardner,

Attached you will find Ohio's Hospice, Inc.'s First Set of Interrogatories, First Request for Production of Documents and/or Things, and First Requests for Admissions Directed to Plaintiff.

Thank you,

Julie

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